

25STLC05545 25STLC05545

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-11

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C08%2F11%2F2026

Source SHA-256: 0b83135ded457b9a694b7eec8c8019daff137508094c593287037f9164e8bdec

Case Number: 25STLC05545 Hearing Date: August 11, 2026 Dept: 26

TENTATIVE RULING:

Motion to Dismiss

Complaint for Failure to Amend, or in the alternative, Demurrer to Plaintiff's First Amended Complaint is granted. The First Amended Complaint filed on April 8, 2026 is dismissed with prejudice.

Defendant is to

file and serve a judgment of dismissal within 20 days.

Analysis:

Plaintiff

Jonathan Villalobos ("Plaintiff") filed the instant action against Defendants AT&T, AT&T, Inc. ("Defendant"), and AT&T California on July 18, 2025. The complaint alleges causes of action for (1) assault and battery; (2) negligence; and (3) intentional infliction of emotional distress. Defendant filed a Demurrer and Motion to Strike Complaint on September 29, 2025, which the Court sustained as to the first and third causes of action with leave to amend on November 12, 2025. (Minute Order, 11/12/2025.) The Court also granted the Motion to Strike with respect to the request for punitive damages with leave to amend. (Ibid.) Plaintiff was ordered to file an amended Complaint within 20 days. (Ibid.) Leave to amend was granted despite Plaintiff's failure to file a written opposition based on Plaintiff's representation at the hearing that he had received a two-page police report that would allow him to allege additional facts in an amended complaint. (Id., p.4.)

On December 8,

2026, Plaintiff filed an Amendment to Complaint, naming Robert Steve Ruano as “Doe 1 Driver.” Almost four months later, on April 6, 2026, Plaintiff filed the First Amended Complaint. On April 8, 2026, Plaintiff’s counsel filed a declaration in response to Defendant’s Notice of Motion and Motion to Dismiss, despite the fact that no such Notice of Motion and Motion to Dismiss had yet been filed. On May 8, 2026, Defendant filed the instant Motion to Dismiss Complaint for Failure to Amend, or in the alternative, Demurrer to Plaintiff’s First Amended Complaint. Plaintiff filed an opposition on July 29, 2026 and Defendant replied on August 4, 2026.

Discussion

Defendant moves

to dismiss Plaintiff’s action on the grounds that he failed to file the First Amended Complaint within the time provided in the Court’s order sustaining the Demurrer to the Complaint with leave to amend. Under Code of Civil Procedure, section 581, subdivision (f)(2), the Court may dismiss “as to that defendant” the complaint when “after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” (Code Civ. Proc., § 581, subd. (f)(2).) Plaintiff was ordered to file the First Amended Complaint within 20 days of November 12, 2025, which was December 2, 2025. (Minute Order, 11/12/25.)

Plaintiff’s

opposition papers do not credibly explain why the amended Complaint was so delayed. The opposition simply contends that the amendment to add Defendant Ruano in place of Doe Driver 1 was not possible until Plaintiff learned Defendant Ruano’s identity on December 8, 2025. (Opp., p. 2:9-12.) Plaintiff then characterizes the First Amended Complaint as having been filed “immediately” thereafter, despite not being filed for another four months. (Ibid.) The opposition does not refer back to the declaration of Plaintiff’s counsel filed on April 8, 2026. In that declaration, however, Plaintiff’s counsel makes another argument that the Court finds lacks credibility: that he believed the fictitious name amendment filed on December 8, 2025 would suffice to satisfy the amendment ordered by the Court upon sustaining Defendant’s Demurrer to the Complaint. (Declaration of Frank H. Canter, filed 04/08/2026, ¶¶4-5.) The declaration does not explain how the fictitious name amendment could reasonably suffice when the Court’s order expressly found “Without factual allegations regarding the circumstances of the alleged assault and battery in this action,

the court finds that the complaint does not sufficiently allege a basis for liability against Defendant.” (Minute Order, 11/12/25, p. 2.) A fictitious name amendment contains no additional factual allegations, as required by the Court’s order. In any event, the premise of Plaintiff’s series of justifications is meritless because Plaintiff could have timely filed an amended Complaint without waiting to learn the Doe defendant’s identity.

To the extent Plaintiff argues that Code of Civil Procedure section 473, subdivision (b) favors a resolution on the merits, the opposition includes no analysis of the statutory language that would support an exercise of the Court’s discretion against dismissal in these circumstances. (Opp., p. 4:17-24.) Likewise, the opposition’s reference to Harlan vs. Department of Transportation (2005) 132 Cal.App.4th 868 to argue that Defendant has failed to demonstrate any prejudice fails to provide any analysis of the cited authority, let alone an analysis that persuades the Court to exercise its discretion in Plaintiff’s favor.

Therefore, Defendant’s request to dismiss the action for failure to timely amend is granted.

The Court does not reach Defendant’s demurrer in the alternative to dismissal. However, the Court notes that the First Amended Complaint appears to be identical to the original Complaint, except for the substitution of Robert Steve Ruano as “Doe 1 Driver.” Thus, even having taken additional four months, Plaintiff did not substantively amend the Complaint and the allegations would be insufficient for the same reasons addressed in the Court’s November 12, 2025 Order.

Conclusion

Motion to Dismiss

Complaint for Failure to Amend, or in the alternative, Demurrer to Plaintiff’s First Amended Complaint is granted. The First Amended Complaint filed on April 8, 2026 is dismissed with prejudice.

Defendant is to file and serve a judgment of dismissal within 20 days.

Moving party to give notice.